IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-V

C.P.(CAA)/01/230/232/ND/2023
IN
CA (CAA)/38/230/232/ND/2021

[Under Sections 230 to 232 of the Companies Act, 2013 read with Companies (Compromise, Arrangements ad Amalgamation Rules, 2016]

IN THE MATTER OF SCHEME OF ARRANGEMENT

M/s. BCC EDUTECH PRIVATE LIMITED
... TRANSFEROR COMPANY No.1/
PETITIONER COMPANY No.1

URBAN BUILDMART PRIVATE LIMITED
... TRANSFEROR COMPANY No.2/
PETITIONER COMPANY No.2

AND

CONSCIENT INFRASTRUCTURE PRIVATE LIMITED
... TRANSFEREE COMPANY /
PETITIONER COMPANY No.3

Hereinafter the Petitioner Company No.1, Petitioner Company No.2 and Petitioner Company No.3 are collectively referred to as 'the Petitioner Companies')

Coram:

SH. P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

Order Delivered on: 03.02.2023

ORDER

PER: DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

1. This Company Petition has been filed jointly by the Petitioner Companies in connection with proposed scheme of arrangement

between the Transferor Company No.1 and Transferor Company No.2 and Transferee Company is before us for admission and for fixing a date of hearing of the main Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the statutory authorities concerned in relation to date of hearing of the Petition and calling for the objections, if any, to the proposed Scheme of Arrangement (hereinafter for brevity referred to as "SCHEME") as contemplated between the Petitioner Companies and their respective shareholders and creditors.

2. From the records, it is seen that the First Motion Application seeking direction for dispensation/convening the meeting of Shareholders, Secured Creditors and Unsecured Creditors was filed before this Bench vide CA (CAA) No. 38/(ND)/2021 and based on such application moved under Sections 230-232 of the Companies Act, 2013, this Tribunal vide order dated 14.10.2022 (pronounced order) has passed the following directions:-

   i) The requirement of convening the meeting of the shareholders, secured creditors and unsecured creditors of the Transferor Company No.1 and Transferor Company No.2 is dispensed with.
   ii) The requirement of convening the meeting of the shareholders, secured creditors and unsecured creditors of the Transferee Company is dispensed with.
   iii) The meeting of the remaining 43% homebuyers of Transferee Company i.e., 1004 homebuyers who are yet to take possession was directed to be held within 60 days of the order dated 14.10.2022.
   iv) The meeting of the unsecured creditors of the Transferee Company/ Petitioner Company was directed to be convened on Wednesday, 12th October, 2022 at 3:00 p.m. to consider and if

thought fit, approve, with or without modification, the proposed scheme of Amalgamation.

v) The Petitioner Companies were directed to serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs; (c) the concerned Income Tax Department; and to such other Sectoral Regulators or Authorities which are likely to be affected.

3. The Chairperson and Scrutinizer of the meeting of Home Buyers had placed on record Chairperson's report dated 19.12.2022 and Scrutinizer's Report dated 13.12.2022 respectively wherein it was stated that the meeting of homebuyers was conducted on 12.12.2022 at 11:00 a.m. wherein the required quorum was present and the resolution for the approval of scheme of amalgamation was approved, adopted and agreed with 100% votes in favor of the scheme.

4. The Petitioner Companies had filed the affidavit of service dated 05.12.2022 for placing on record the proof of service of notice of meeting of the homebuyers of the Transferee Company were dispatched on 09.11.2022 through speed post and publication in newspapers informing the date of meeting of the home buyers as directed by this Tribunal in order dated 14.10.2022. Further, the notice was also served to the statutory authorities on behalf of the Petitioner Companies.

5. Thereafter this petition on second motion has come up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and

Amalgamation) Rules, 2016. Accordingly, it is now hereby ordered as follows: -

(i) Notice of the hearing of the main Company Petition shall be advertised in two newspapers namely, "Business Standard" (English Delhi edition) and "Business Standard" (Hindi Delhi edition) not less than 10 days before the next date fixed for hearing the petition.

(ii) In addition to the above public notice, each of the Petitioner Company shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs; (c) officers having jurisdiction over the Petitioner Companies in the Income Tax Department; and to such other Sectoral Regulators or Authorities which are likely to be affected, at least clear 30 days before the date fixed for hearing of the above Petition.

(iii) Further, the Transferor Company No.1 and Transferor Company No.2 are directed to serve notice to the Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-11001.

(iv) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the annexures filed therewith at least 15 days before the date fixed for hearing.

(v) The Petitioner Company shall at least 7 days before the date of hearing of the Petition file an affidavit of compliance in relation to paper publication effected as well as service of notices on the Authorities specified above including the other Sectoral Regulator(s) as well as to Objectors, if any.

(vi) Objections, if any, to the Scheme contemplated, by the Statutory Authorities to whom notice has been given may be filed on or before

the date of hearing fixed herein, failing which it will be considered that the Statutory Authorities have no objection to the approval of the Scheme by this Tribunal and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's Statutory Auditor.

(viii) The next date of hearing of the Petition shall be on 27.03.2023 for the consideration of the approval of the Scheme of Arrrangement as contemplated between the Petitioner Companies i.e., Petitioner Company No.1, Petitioner Company No.2 and Petitioner Company No.3.

Copy of the order be served to the parties.

Sd/- **Sd/-**

(DR.BINOD KUMAR SINHA) **(SH. P.S.N PRASAD)**
MEMBER (T) **MEMBER (J)**